ordinary processes of the law. For them, ‘such Govts as are organized to exploit the oppressed nations have no right to exist except by the right of the sword (i.e. brute force) with which they try to curb all the ideas of liberty and freedom and the legitimate aspirations of the people’. What the accused were facing, it was being contended, was nothing but a sham. So the letter of 5 May 1930 excoriated the government with the remarks, ‘We believe all such Govts. and particularly this British Government thrust upon the helpless but unwilling Indian nation to be no better than an organized gang of robbers and a pack of exploiters equipped with all the means of carnage and devastations.’ This is why they were less than enamoured by the government setting up this special tribunal, because ‘[i]In the name of “law and order” they crush all those who dare to expose or oppose them’. The letter to the commissioners did not end there. It went on to attack the entire imperialist project of the Raj, describing imperialism as ‘nothing but a vast conspiracy organized with predatory motives’ in which the British Government, ‘by their designs not only commits judicial murders through their law-courts but also organize general crimes like war’. This was the reason why they would not participate in the tribunal proceedings, even though they had participated in the court proceedings which had not been irregular.

By boycotting the proceedings, the accused would stand by their ‘inalienable rights’, which they must have known was a concept itself borrowed from the English common law, but now deployed with great effect against the Crown itself. They had little hesitation in pointing out that the government was such that ‘they feel no hesitation in shooting down innocent and unarmed people who refuse to yield to their depredatory (sic) demands or to acquiesce in their ruinous and abominable designs’. And yet, they use the language of law and order to commit the gravest injustices, being so clever that ‘under the garb of custodians of “law and order” they break peace, create disorder, kill people and commit all conceivable designs’. They had every right to protest because their right in freedom provided them with a basis for a revolt against a government which did not respect the ‘inalienable’ rights of humanity. They believed in these